

System Audit

Cross-border jurisdictional vacuum in social security

Document 0 — Introduction and reading guide

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Last updated: 1 October 2026, 13:02

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A European story

This story doesn't begin at a border. It begins with love and work.

*A man from Lombardy. He feels Lombard, not Italian. A woman from Alsace. She feels Alsatian, not French or German. Two borderline cases. They meet in Alsace. She is a nurse. He is a labourer. He gets injured, ends up in hospital, and that's where it all begins. They get married. When the company he works for relocates to Belgium, they move with it. Not for adventure. For work. It is the early 1970s. The European Economic Community has six member states. * The free movement of workers is a principle on paper. In practice, the labourer travels with paper forms, exchange rates and the hope that the systems will align. They settle in Belgium.

That is where their child was born. In Wilrijk, on 15 September 1981. It was a different Europe. There are now ten Member States; Greece joined on 1 January of that year. The Schengen Agreement does not yet exist. There are customs posts and passport controls at every border. Each country has its own currency. The European Monetary System of 1979 was intended to stabilise exchange rates to some extent. In theory, it was all about European unification, but in reality it meant stamps and queues. The child grew up in Hoboken, in a home where only French was spoken. But behind that single language lie three worlds: his father's world, his mother's world, and the Flemish world in which he is growing up. The child carries those worlds within him, even before he can walk. At that moment, he is one. One body. One name on one file.

****BELG**At the age of eighteen, in 1999, he moved to Berchem on his own. At that time, the European Union had fifteen Member States. The euro had just been introduced for electronic payments, the Schengen Agreement had been incorporated into European law, and 'European citizenship' had by then been enshrined in law. ** The borders between Belgium and the Netherlands were open. But nationality is still an exclusive right. He opts for full integration and renounces his multiple origins. He wants to be Belgian. Completely. Because dual nationality did not yet exist in those years, this meant a clean break: renouncing his Italian nationality. Renouncing his French nationality. Erasing all the identity documents he had inherited from home, in order to receive one that he had chosen himself. He is the only one in his family to make this choice. His sisters retain their mix of origins. He does not. He chooses one. Voluntarily. With complete conviction, in order to integrate. From that moment on, there is just one word on his identity card: **BELG**.

He then moves to Ghent. There, he meets his future wife. Her identity card bears exactly the same word. Two people, one administrative nationality. They marry in 2007. By now, the EU has 27 Member States. The euro is the everyday currency, Schengen is the norm, and the physical border has long since disappeared. They live in Sint-Niklaas, and later in Waasmunster. Four house moves in Belgium, four new files, four different offices. Every house move is an administrative procedure. Every new local authority requires a new registration. With every move, the couple's unity grows: from one to two. Two people, two files, two administrative identities that must now navigate the bureaucracy together.

***In 2014, they moved together to Zeeuws-Vlaanderen in the Netherlands. At that time, the EU had 28 Member States. The physical border has been removed; you can drive from Belgium to the Netherlands without stopping. But an invisible administrative border has been drawn. That is where the first friction arises. Their Belgian driving licence is valid throughout the European Union, as is the Dutch one. Yet they have to hand in the Belgian one. The Netherlands only permits one valid document per person. *** They hand it in at the local council and never get it back. What they receive in its place is a Dutch document with exactly the same European validity. Only the country of issue has changed. From that moment on, they carry this paradox in their own wallets. A Belgian identity card for their identity. A Dutch driving licence for their mobility, which serves as legal proof of identity in the Netherlands. In Belgium, that same driving licence is not accepted as proof of identity; there, only the Belgian identity card is valid. Two documents, two countries, one person. Their lives are divided between two states: living in one, insured in the other. In theory, they belong to both countries and their lives should flow seamlessly across the border. In practice, the administrative system is programmed to recognise only one country at a time. As soon as the systems fail to communicate with one another, you become unrecognisable.

In 2016, their son was born. A child who carries within him what his parents and grandparents have passed on to him. His mother's Flemish roots. His grandparents' languages — not as a nationality, but as an origin, as a sound, as blood. And Zeelandic Flemish because he lives there, breathes the air and makes friends there. Four worlds in one body. Four origins in one child. He crosses the border every day. Not for work, like his parents, but for school. He lives in the Netherlands, but learns to read and write in Flanders. At school he learns his mother's language, but his bed is in Hulst. And that is where the inevitable begins. To the Flemish, he is a Dutchman, driving a car with a yellow number plate. To the Dutch, he is a Fleming, recognisable by his accent. In the playground, the other children pigeonhole him as 'Belgian'. Not because anyone asked him to. Not because he made a choice. But because the children around him have already learnt that pigeonholes exist, and that anything that differs must be categorised. Three people, three files, two countries, one family.

BELG. Eventually, he too is given a plastic card that is supposed to tell him who he is. That single word is printed on it once again: BELG. The small European flag in the corner is all that remains of the greater ideal. The rest has been made invisible. The system records one dimension, whilst the child embodies four.

That is how the state's algorithm works. It does not recognise a family. It does not recognise an entity that has grown to span two countries. It sees only individual units in individual boxes in individual countries. Anyone who does not fit into a box falls through the cracks.

BELG.BELG. It is 2025. The European Union has 27 Member States, following the United Kingdom's withdrawal. Governments have been digitised, data streams connect the capitals, and in theory this promises a frictionless union. And what of the child born in 1981? He is now forty-four. He falls seriously ill and ends up in hospital. The toll of diabetes is irreversible: the amputation of two toes and the loss of sight in one eye. The Belgian doctors' verdict is clear: you must no longer drive. He is neither able nor willing to do so any longer. The Dutch doctors in his country of residence do not know him, and are not even allowed to know

him due to the strict legislation surrounding dual registrations. Although his Dutch driving licence is still physically in his wallet until his next eye test — the Netherlands is still unaware of the situation, because the database simply refuses to recognise the Belgian medical reality — his cross-border mobility is effectively over. Soon, when that document inevitably expires, the system will have erased the only card that still gave him an administrative presence in the Netherlands. What remains is the Belgian identity card. One word. BELGIAN. The man who has spent his whole life moving across borders, who voluntarily gave up his Italian and French identities to become Belgian, but who could never erase the world of his father and mother, is, at the end of his journey, mercilessly reduced to a single country. The system has caught up with him. The circle is complete. He is once again exclusively Belgian. And his son, who carries four worlds within him, is listed in the database with exactly that same word. BELG. Nothing more. A small European flag in the corner.

Three generations. Three identity cards. One word. The system reduces everyone to a single data point. Even the one who tried to rise above it.

****It is now autumn 2026. As he types out this audit, a tear falls onto the keyboard. Not out of self-pity, but out of the sheer, leaden exhaustion of a battle against the void. The bitter tragedy is that Europe is now aware of the mistake. In April 2026, the European legislator in Brussels reached a political agreement on the long-awaited revision of the old coordination rules; in July 2026, the revised text was formally adopted. **** The flaws in the system have been acknowledged; the vacuum in jurisdiction has been identified. But the ink of politics flows endlessly more slowly than the blood of the citizen. The systems will not actually be adapted until around 2030. Until then, the flesh-and-blood cross-border worker remains the sole remaining buffer against the state's failing systems.

And even then, in 2030, those new rules will be nothing more than a technological band-aid on a much deeper institutional wound. As long as nation states cling desperately to their own closed systems, the cross-border worker will, at heart, remain the unintended error message of a half-finished design.

That is what this dossier examines. Not nationality as a legal status, but origin as a human reality. And the question of why a system that calls itself 'European' reduces the European reality of its own citizens to a one-dimensional field on an identity card.

The story begins here. The facts are set out in Document B.

* Verordening (EEG) nr. 1408/71 van de Raad van 14 juni 1971 betreffende de toepassing van de socialezekerheidsstelsels op werknemers en zelfstandigen en hun gezinsleden die zich binnen de Gemeenschap verplaatsen. Deze verordening verving de oudere Verordeningen nr. 3 en nr. 4 uit 1958 en trad in werking op 1 oktober 1972.

** Met het Verdrag van Maastricht (getekend in 1992, in werking getreden eind 1993) werd het "Burgerschap van de Europese Unie" formeel ingevoerd. Elke persoon die de nationaliteit van een lidstaat bezit, is automatisch ook burger van de Unie, met het recht om vrij te reizen en te verblijven. Toch blijft de nationale administratieve uitvoering in de praktijk dominant over dit Europese basisrecht.

*** Conform de Europese Rijbewijsrichtlijn (2006/126/EG) is er een geharmoniseerd Europees model, maar blijft het beheer strikt gekoppeld aan het territorialiteitsbeginsel van de lidstaat waar men de "normale verblijfplaats" heeft. Dit dwingt grensarbeiders om hun uitgevende land te veranderen na een verhuizing, ondanks de Europese status van het document.

**** In april 2026 werd na jarenlange triloog-onderhandelingen een voorlopig politiek akkoord bereikt over het 'Labour Mobility Package' (herziening van Verordening 883/2004 en 987/2009); in juli 2026 volgde de formele aanname. De wetgever erkent hierin de institutionele leemtes voor grensarbeiders, maar door de benodigde IT-aanpassingen worden de structurele oplossingen pas tegen 2030 operationeel afdwingbaar.

Why this project?

This project documents what happens when someone falls between two national systems. One case, documented in minute detail: a cross-border worker who lives in the Netherlands and worked in Belgium, and who, due to a combination of medical and administrative circumstances, finds themselves stuck between two social security systems that refuse to recognise each other's data.

It is neither a plea nor an indictment. It is an empirical audit. The underlying question is simple: how is it possible that a citizen who exists in two countries at the same time is rendered administratively invisible by both countries?

The answer does not lie with any one body, nor with any single error. It lies in the architecture of the system itself. The national implementation systems are built on a binary logic that leaves no room for a citizen who is part of two systems at the same time. If you do not fit into one box, you do not fit into the other either. And there is no third box.

What this project is not

No complaint. No accusations against individuals. No personal account. The documents describe a system, not the people who work within it. Most of the people who feature in this file are simply doing their jobs within the rules laid down for them. The problem is not that they are acting in bad faith. The problem is that the system has no room for those who do not fit the standard profile.

The five documents

Each document can be read on its own. Each one examines the same subject matter from a different angle.

Document A — The narrative audit

It tells the story of the organisations that together make up the system. What they do, why things go wrong, and how this affects the next link in the chain. For anyone who wants to understand the bigger picture without having to wade through the underlying data.

Document B — The data matrix

Contains all the facts: dates, reference numbers, correspondence, timelines. The foundation upon which the other documents are built. For anyone wishing to verify exactly what happened.

Document C — The visual architecture

Shows the structures, networks and data flows that underlie the failure. Diagrams and mechanisms brought into focus — things that remain invisible in text. For those who want to understand why the facts lead to these conclusions.

Document D — The synthesis

It brings together the patterns that emerge from the material. Which paradoxes recur, which fault lines are systemic, and what role does the European Union play? For those who want the full picture.

How to use them

Start wherever you like. Each document stands on its own.

If you just want the story: Document A. If you want the facts: Document B. If you want a visual overview: Document C. If you want the conclusion: Document D.

If you want to read everything, start with Document 0, then move on to Document A, then to Document B for the underlying facts, then to Document C for the architecture, and finish with Document D.

Who is it for?

For anyone who wants to understand how a modern welfare system is held back by its own limitations. Policy-makers, lawyers, academics, journalists, civil servants, and the frontline workers who are experiencing the same thing.

The material is in the public domain and may be used freely. Anyone quoting from it should cite Document B as the source of the facts.

Source and verification

All the information recorded in this project is based on original correspondence, medical reports, reference numbers and log files. Where something cannot be verified, this is explicitly stated. Where something remains unclear, it is recorded as such and is not presented as a conjecture.

The facts are set out in Document B. The other documents are based on this and draw on the same source.

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